

Chief Justice's Court

Case :- WRIT - C No. - 21414 of 2023

Petitioner :- Lalman

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Ganesh Shanker Srivastava, Ashwini Kumar

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Pritinker Diwaker, Chief Justice

Hon'ble Ashutosh Srivastava, J.

Sri G. S. Srivastava, for the petitioner, learned Standing Counsel for the State and Sri C. S. Singh, for Respondent Nos.2, 5, 6 & 7.

By means of the present writ petition, the petitioner has challenged the recovery proceedings initiated against him consequent to the non-payment of electricity dues. Learned counsel for the petitioner submits that the petitioner has already deposited the amount along with compounding charges and according to him no dues exists against the petitioner.

Per contra, Sri C. S. Singh, learned counsel representing Respondent Nos.2, 5, 6 & 7 submits that the dues upto the year 2016 was cleared by the petitioner along with compounding charges which fact has been recorded by the Additional Sessions Judge/Special Judge (Electricity Act) Siddharth Nagar in the order dated 14.01.2021 passed under the proceedings under Section 138(B) of the Electricity Act but thereafter the petitioner has not paid any amount towards the electricity dues and consequently, recovery has been ordered.

In our opinion, if the petitioner is disputing the amount he may approach the concerned Authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. In the eventuality of petitioner approaching the concerned Authority under the said provision, it is expected that the said Authority shall consider the objection and pass appropriate orders.

With the aforesaid observations, the writ petition stands **disposed of**.

Order Date :- 7.7.2023

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(Ashutosh Srivastava, J.) (Pritinker Diwaker, C.J.)